

fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Plaintiff has established service of a deposition notice as to Tompkins, Congdon, and Lopez, respectively. No valid objections under Section 2025.410 were served. Plaintiff has also provided evidence that on the noticed dates for each deposition, which were June 29, July 1, and July 3, 2026, Plaintiff's counsel and a court reporter appeared on zoom for the depositions. Neither defense counsel nor any deponent appeared. Plaintiff is entitled to an order compelling each of the three deponents' attendance and testimony.

Sanctions. Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of \$2,250.00 on the Motion to Compel the Appearance of David Lopez for Deposition. This consists of 5 attorney hours at a rate of \$450.00. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are \$1,200.00.

Each of the three Motions to Compel Appearance for Deposition of Bailey Tompkins, Kimberly Congdon, and David Lopez are **GRANTED**. Sanctions of \$1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed orders were lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the orders.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.

CASE NUMBER: 24CV-0205612

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories: Plaintiff seeks further responses to Special Interrogatories, Set Two. The motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2030.300(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3).

The interrogatories at issue, numbers 27 and 28, seek the identities of current and former employees who, within the preceding six years, complained of sex or gender-based mistreatment to Plaintiff's supervisor, Kimberly Congdon, or to Ryan Tucker, the decision-maker involved in

Plaintiff's termination. Plaintiff contends the requested information is relevant to her claims for pregnancy discrimination, retaliation, and related causes of action, and that Defendant has failed to provide verified, Code-compliant responses despite extensive meet and confer efforts.

The Court finds the information sought is discoverable. California's discovery statutes are construed liberally, and a party is entitled to discovery of any nonprivileged matter relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. Information concerning other employees who made similar complaints to the same supervisors or decision-makers is relevant to Plaintiff's claims and may lead to admissible evidence regarding discriminatory motive, retaliatory intent, pretext, or a pattern or practice of discrimination.

Defendant has not demonstrated that its objections are meritorious or that its responses are Code-compliant. The record reflects Defendant failed to timely serve responses, thereafter served only unverified responses containing objections, and despite repeated assurances that verified supplemental responses would be forthcoming, failed to provide either verifications or supplemental responses before the filing of this motion. The Court concludes Defendant has not met its burden of justifying its objections or incomplete responses.

Sanctions: Monetary sanctions are mandatory against anyone who makes or opposes a motion to compel further response to Form or Special Interrogatories unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2030.300(d). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” CRC 3.1348(a). Plaintiffs request \$2,250 in monetary sanctions which is comprised of five attorney hours at \$450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are \$1,200.00.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two is **GRANTED**. Sanctions of \$1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed order was lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the order.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.

CASE NUMBER: 24CV-0205612

Tentative Ruling on Motion to Compel Further Responses to Requests for Production: Plaintiff Larissa Perry seeks an order compelling Defendant Advanced Crisis Solutions, Inc. to provide complete Code-compliant responses to Plaintiff's Requests for Production of Documents,